SIMBARASHE MUJURU
versus
C.E.O AFRICA ROUNDTABLE

HIGH COURT OF ZIMBABWE
MAWADZE DJP and WAMAMBO J
HARARE; 21 November 2024 and 2 January 2026

Civil Appeal

M.H. Chitsanga, for the appellant
T.A. Nyaruwanga, for the respondent

WAMAMBO J: This is an appeal against the entire judgment of the Magistrates Court sitting at Harare.

In the Court *a quo*, the appellant was the plaintiff while the respondent was the defendant. Appellant issued summons against respondent seeking relief as follows:

> "1. Payment in the total sum of USD 6 110,14 (Six thousand one hundred and ten United States Dollars and fourteen cents categorized as follows:
>
> a) Payment in the sum of USD$4500 (Four Thousand Five Hundred United States Dollars) or the equivalent payable in Zimbabwean dollars at the prevailing interbank (sic) as at date of full and final payment being the outstanding remuneration for services rendered in terms of a Service Level Agreement dated 08 February 2023.
>
> b) Payment in the sum of USD 1610,14 (One Thousand Six Hundred and Ten United States Dollars and fourteen cents) or the equivalent payable in Zimbabwean dollars (sic) as at date of full and final payment being expenses incurred by the plaintiff on behalf of the defendant.
>
> c) Costs of suit on a legal practitioner and client scale"

The parties entered into what is referred to as a Service Level Agreement on 8 February 2023. The agreement was produced as an exhibit during the trial. The appellant was the consultant while the respondent was the client.

The Service Level Agreement reflects the purpose of the agreement as follows:

> "1. Purpose
>
> Consultant to organise and facilitate the intended business mission to USA by CEOART and its members as follows: -
>
> 1. Organize appropriate business roundtables and seminars and ensure attendance of relevant stakeholders in the USA
> 2. Identify and invite appropriate speakers and presenters for the seminars
> 3. Arrange, facilitate and oversee the company visits
> 4. Facilitate engagements with the Diaspora, financiers, capital equipment, providers, buyers etc.
> 5. Organize and oversee appropriate recreational activities
> 6. To draft an appropriate program and guide accordingly"

Clauses 3 and 4 of the agreement which are at the centre of the dispute in this matter read as follows:

> "3. Payment
>
> i. CEO Africa Roundtable agrees to pay the consultant a Consultation fee of USD 15000 for the program.
>
> ii. A deposit of USD 1000 on contract signing
>
> iii 60% of the consultant fees to be paid before delegates depart from Zimbabwe.
>
> iv. 40% of the consultant fees on program completion
>
> v. Program Costs of USD 4500 including ground transport and other events direct cost
>
> 4**.** Extra Services
>
> i. Program costs have to be approved by CEO Africa Roundtable and payments will be made directly to the service providers.
>
> ii. CEO Africa Roundtable to do the logistics and hotel bookings with guidance from the consultant."

A trial ensued and the Trial Magistrate in her judgment made among other findings the following findings.

The appellant was paid all the money due under the Service Level Agreement.

Appellant admitted to receiving $20 400 00 and this entails that respondent performed its obligations in terms of the contract.

That the appellant expended the extra expenses in the sum of US$1610,00 was not established through a meeting of the minds of the parties.

Unhappy about the verdict of the Learned Trial Magistrate, appellant raised four grounds of appeal as regurgitated below.

"1. The Court *a quo* erred by making a finding of fact that the appellant had received all money due under the service level agreement when this finding was not supported by the evidence. Consequently, the court's decision which hinged on this unsupported finding ought to be overturned.

2. The court *a quo* misdirected itself by addressing and making a finding on an alleged verbal contract, an issue that was neither properly before it nor pleaded and ventilated by the parties.

3. The Court *a quo* erred and misdirected itself in ignoring evidence placed before it relating to the respondent's acknowledgement that it owed the appellant. Consequently, it wrongly dismissed the appellant's claim.

4. The court *a quo* erred by not considering the crucial question of whether the payments made by the respondent were intended for the appellant's consultation fees or for the respondent's trip expenses"

The respondent had raised points in limine in the heads of argument. Before us, the points *in limine* were expressly abandoned by the respondent.

It would appear in the circumstances of this case that although the parties entered into a written contract their understanding of the terms of the contract differed.

I say so because the evidence of the appellant and the respondent's representative depicted a clearly contradictory picture.

The drafting of the contract itself is not the most elegant.

I will proceed to consider the grounds of appeal as raised.

Ground one

The trial Court indeed made the finding that all the money due under the service level agreement was paid by the respondent.

In fact the Trial Court was of the view that it was common cause that respondent paid the total sum of US$ 20 400 under the service level agreement.

Appellant raised the issue of the non-payment of the money due under the same level agreement at a very early stage.

In the particulars of claim appellant raised the issues although rather obscurely in paragraphs 7 to 8 as follows: -

> “7. To date the defendant has since then only made part payment of the remuneration of the plaintiff for the services rendered.

8. and no payment towards the reimbursement of for the expenses incurred on its behalf which they are well aware of despite multiple demands from both the plaintiff and his legal practitioners"

Meanwhile the respondent in her plea and with specific reference to paragraph 7 above says:

"AD PARAGRAPH 7

5. It is denied that defendant only made part payment of the money owed. Defendant, as stated in paragraph 2 above paid all the money due to plaintiff in terms of the Service Level agreement. Defendant is not aware of any extra costs which were incurred by Plaintiff. Defendant has not provided with any specific information and documents to prove that the alleged costs were incurred and are due"

Clearly the dispute of whether or not the USD 15000 consultation fee was paid in full was a live dispute from the very beginning. Along with it is the dispute concerning the claim of USD 1610,14 for extra expenses.

The respondent relied on a document at page 113 of the record which reflects that a total of USD 21400 was paid to the appellant as follows:

Date	**Recipient**	**Detail**	**Amount**
8.2.23	MUJURU	CASH	1000,00
17.5.23	KIPSON	CARD	3900,00
5.6.23	BINHA	CARD	8000,00
26.6.23	MUJURU	CASH	1500,00
7.6.23	NYACHEGA	CARD	7000.00

The record reflects a payment voucher of US$1500 to appellant on 26 June 2023 which accords with the table above supplied by the respondent.

There is yet another payment voucher of USD$1000 received by the appellant on 15 February 2023 from respondent. The same accords with the table supplied by respondent.

In appellant's testimony he testified that of the US$15000 he was paid US$10500 and further that of the US 5400 he was paid US 2900. The US $2900 is reflected at page 44 of the record.

The joint pre-trial conference memorandum reflects that the onus to prove that appellant was paid all the money due under the Service Level Agreement was on the respondent.

The respondent led evidence from two witnesses namely Justice Neruwande (Justice) and Kipson Gundani (Kipson) apparently erroneously referred to as Gibson Mugundani or Mugundami in the record of proceedings before the Magistrate.

Kipson's evidence does not appear to be very helpful. He testified that the amount of US$15000 was paid to the appellant. The evidence is unclear on how that payment was made and when it was made. He doesn't comment on the US $5400 as provided for in the agreement. He produced no documents to prove the payment of the US$15000 to appellant.

Justice's evidence like Kipson makes bold assertions about the payment of US$24,400. There is no clarity on how that amount was paid and to whom.

Ground One indeed is meritorious. The Court *a quo* made a finding that appellant received all the money due under the Service Level Agreement. Such is not demonstrated by the evidence as pointed out above.

Ground Two

The Court *a quo* made a finding that there was a verbal contract. It is unclear which verbal contract is being referred to. The appellant's evidence makes no reference to such verbal contract. There indeed was no plea advanced on a verbal contract between the parties.

Again the Court *a quo* fell into error in this regard. This ground of appeal has merit.

Ground Three

The appellant testified that respondent acknowledged indebtedness. The appellant produced a letter dated 18 July 2023 addressed to the respondent through Nqobile Manzara — Head of US Mission 2023 seeking a resolution regarding funds owed to him. The letter is quite detailed with attachments and has attached supporting documents. The letter is titled "Fund — US Mission Payment Issues Simba Mujuru v CEO Art." At page 179 of the record, in a response dated 20 July 2023 the date is acknowledged. The response reads in part as follows:-

> "I have studied your email and have held a conversation with Kipson as promised yesterday. Kipson has acknowledged the debt and confirmed that the two of you have held numerous discussions on this matter……..
>
> Her opinion may not matter much because Kipson has not disputed your claim"

Notably from a reading of the evidence Kipson referred to in the email above is the same Kipson Gundani the respondent's CEO. The Court was under a duty to consider the full circumstances of the case from both litigants and make proper findings. That the Court did not speak to the allegation that respondent acknowledged their debt is a misdirection.

The learned Trial Magistrate did not advert to the acknowledgement of debt as detailed above. Such was clear evidence on which the Court should have deliberated on and made findings but none was made. In fact there is no mention or reference to the acknowledgement made on behalf of the respondent.

Ground Four

This last ground speaks to whether or not the Court *a quo* considered what is referred to as the crucial issue of whether the payments made by the respondent to appellant were for appellant's consultation fees or for respondent's trip expenses.

The ground as raised avers that the Court *a quo* misdirected itself by not considering whether the payments by appellant were for consultation fees or for respondent's trip expenses.
To examine this ground closely there is need to consider what the Court *a quo* decided on this issue if at all if appellant is correct in this regard.

The Court *a quo* was indeed alive to the principle that a Court should not rewrite a contract for the parties. In this regard the Court *a quo* relied on the matter of *Magodora & Others* v *Care International Zimbabwe 2014 (1) ZLR 397 (S)* at 403 C-D where the Court said:
"In principle, it is not open to rewrite a contract entered into between the parties or to excuse any of them from the consequences of the agreement that they have freely and voluntarily accepted."

The issue of the payments made by appellant is reflected in the second issue for trial in the joint pretrial memorandum as follows: —

> "2. Whether or not the plaintiff incurred expenses on behalf of the defendant in the sum of US$1610 if so were those expenses approved by defendant."

The issue as reflected above was firstly if appellant incurred expenses and if so were the expenses approved by the respondent.

The fourth ground appears closely linked to the other grounds. It however speaks directly to the expenses incurred by the appellant.

The issue does not seem to be whether the expenses were for consultation fees or for respondent's trip expenses. That issue doesn't appear to have been before the Court as an issue to be resolved. The issue is as formulated in the joint pre-trial conference memorandum. The issue is the issue of whether or not appellant incurred the expenses and whether he was so authorized.

The Court *a quo* found that in respect of extra costs they were to be approved by the respondent. The Court made findings as follows at page 21:

> "When one turns to the Service Level Agreement it is explicit that the program costs were capped at US $5400. In respect of extra expenses these were also to be approved by the defendant. The plaintiff has not established the existence of express authorization to spend on extras. The WhatsApp communication between the parties does not indicate an express agreement for the plaintiff to spend beyond the capped program cost of US $5400.00"

When appellant was asked in examination in chief to explain the expenses, his answer was as follows and appears at page 33 of the record:

> "A. They are listed at page 19 of Plaintiff's bundle, travel expenses, accommodation, meals, venue, inspection, flights, insurance of vehicles, parking, fuel for vehicles."

I note here that plaintiff's bundle of documents reflects, has an index. The index reflects that at pages 19 to 25 are "expenses incurred on behalf of the defendant."

At page 186 of the record the total is given as US 11 312.24 and the sum of $9900.00 is reflected as paid in the words "funds transferred". The sum of US$1610.14 is reflected as being the balance.

This is basically the sum claimed by appellant as the balance. The payment vouchers, bank statements and other documents are included in plaintiff's bundle of documents.

Appellant's evidence was that the expenses were approved by Mr Gundani (Kipson) of the respondent company. Clause 3 (v) of the service level agreement reflects the limit of program costs as USD 5400.00 which had to be approved by the respondent. The appellant's reliance on emails by the respondent approving the extra expenses is not borne by the record. That has to be understood in the context of the upper limit of USD 5400.00.

I find in this regard that the Court *a quo* was correct to find that there was no express approval from the respondent for the payment of the US$1610 incurred by appellant.

To that end I find that the claim of US$4500 was indeed proven while the claim of US$1610.00 was not proven in the circumstances of this case.

The Court *a quo*'s dismissal of the US 4500 claim was therefore wrong while the dismissal of the US$1610.00 was correct.

In the circumstances it is ordered as follows:

1. The appeal partially succeeds.
2. The judgment of the Court *a quo* be and is hereby partially set aside as follows:

"2.1. The claim of USD 4500 or the equivalent payable in Zimbabwean dollars at the prevailing interbank rate as at date of full and final payment be and is hereby granted with costs."

2.2. The claim of USD 1610.14 or the equivalent payable in Zimbabwean dollars at the prevailing interbank rate be and is hereby dismissed."

3. The respondent shall pay appellant's costs.

WAMAMBO J:……

MAWADZE DJP agrees:……

Mutandiro, Chitsanga and Chitima, appellant's legal practitioners

Hove Legal Practice, respondent's legal practitioners